

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-21

PKDC, LLC,
Complainant,

v.

CMA CGM S.A.,
Respondent.

**RESPONDENT’S MOTION FOR CONFIDENTIAL TREATMENT OF
DESIGNATED INFORMATION CONTAINED IN
RESPONDENT’S REPLY BRIEF, APPENDIX, PROPOSED FINDINGS OF FACT,
AND REPLY TO COMPLAINANT’S PROPOSED FINDINGS OF FACT**

Pursuant to Rule 5 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.5, and paragraph 4(c) of the Protective Order entered by the Presiding Officer in this matter on February 7, 2025, Doc. No. 20, Respondent CMA CGM S.A. moves for confidential treatment of certain information designated in Respondent’s Reply Brief, Appendix, Proposed Findings of Fact and Reply to Complainant’s Proposed Findings of Fact (the “subject filings”).

Good cause exists for treating the information designated in the subject filings as confidential. The information for which confidential treatment is sought is entitled to such treatment on one or both of two separate grounds. First, many of the documents contain proprietary business information or trade secrets, including strategies in dealing with carriers, booking strategies, and non-public shipping- and vendor-related information that, if publicly disclosed, would subject PKDC to competitive harm. *See, e.g., In re Adode Sys., Inc. Sec. Litig.*, 141 F.R.D. 155, 163 (N.D. Cal. 1992)(disclosure of business strategy, analysis of competitors and

relationships with companies may put a company at a competitive disadvantage). Other documents contain the names of CMA CGM's customers, which information has been found to be protectable trade secrets. *See, e.g., Allstate Ins. Co. v. Ameriprise Fin. Servs., Inc.*, 2023 WL 5334638, at *14 (N.D. Ill. Aug. 18, 2023). Information of the types described above constitutes "a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii)" 46 C.F.R. § 502.5(b). Accordingly, such information is entitled to confidential treatment.

The second type of information for which confidential treatment is sought is service contract terms. Numerous documents for which confidential treatment is sought consist of service contracts, service contract amendments, or summaries/discussions of service contract terms. Service contracts are confidential under 46 C.F.R. § 530.4, and 46 U.S.C. § 40502(d) provides that the identity of the shipper is not part of the public essential terms of a service contract. Accordingly, service contracts and/or the terms thereof are entitled to confidential treatment in this context.

In light of the foregoing, Respondent Complainant respectfully requests that the Presiding Officer grant confidential treatment for the information reflected in the attached confidentiality table for the reasons set forth above and identified in said table.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on June 25, 2026, the foregoing submission was served by electronic mail
on the following:

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/s/ Wayne Rohde
Wayne Rohde

CONFIDENTIALITY TABLE

Bates Range	Description	Classification Requested for	Basis for Confidentiality Request
RX0001 (PK00046776)	Aug. 12, 2021 internal email discussing booking procedure	Entire Document	Business confidential information
RX0002-RX0003 (PK00046835)	Aug. 13, 2021 internal email discussing booking procedure	Entire Document	Business confidential information
RX0017-RX0020 (PK00047100)	Apr. 22, 2022 internal email discussing booking report and booking procedure	Entire Document	Business confidential information
RX0034-RX0039 (PK00063496)	Aug. 10, 2021 internal email discussing booking procedures	Entire Document	Business confidential information
RX0040-RX0042 (PK00070516)	Aug. 25, 2021 internal email discussing weekly booking review and booking procedure	Entire Document	Business confidential information
RX0052-RX057 (PK00071447)	Mar. 23, 2022 internal email discussing booking procedure	Entire Document	Business confidential information
RX0064-RX0066 (PK00073229)	July 30, 2021 internal email discussing freight report	Entire Document	Business confidential information
RX0067 (PK00079986)	Service Contract Signature Page	Entire Document	Confidential service contract; 46 C.F.R. § 530.4
RX0068 (PK00079995)	Service Contract Signature Page	Entire Document	Confidential service contract; 46 C.F.R. § 530.4

RX0069-RX0086 (PK00080224)	Service Contract	Entire Document	Confidential service contract; 46 C.F.R. § 530.4
RX0087-RX0107 (PK00080386)	Service Contract Amendment	Entire Document	Confidential service contract; 46 C.F.R. § 530.4
RX0108-RX0100 (PK00080424)	Service Contract Amendment	Entire Document	Confidential service contract; 46 C.F.R. § 530.4
RX0111-RX0136 (PK00080504)	Service Contract	Entire Document	Confidential service contract; 46 C.F.R. § 530.4
RX0167 – RX0175 (CMA 038825)	Correspondence re space allocation	Entirety of RX0167-RX0174	Identity of CMA CGM customers
RX0176 – RX0184 (CMA041945)	Correspondence re space allocation	Entirety of RX0176-RX0178 and RX0181-RX0184	Identity of CMA customers; rate information
RX0222-R0223 (CMA133908)	Correspondence re PSS	Dollar Amounts on RX0222	Confidential rate information
PK00047091 (Native)	Internal booking report spreadsheet detailing bookings, shipping activity, customer purchase order numbers, and other commercially sensitive information	Entire Document	Business confidential information
PK00070978 (Native)	Summary of Confidential Contract Terms	Entire Document	Confidential contract terms, incl. rates and parties; 46 C.F.R. § 530.4

PK00071357 (Native)	Internal spreadsheet compiling contact information (including names, addresses, phone numbers, and email addresses) for carriers in various locations	Entire Document	Business confidential information
REL_ECA0000026526.001 CMA018831 (Native)	Service Contract Amendment	Entire Document	Confidential service contract; 46 C.F.R. § 530.4